5.4. Recap

Post-Effective Period roadmap: six provisions on delivery and updating.

Provision	What It Does	Key Limits
§ 5(b)(1)+(2) *Prohibition*	**§ 10 prospectus must accompany or precede sale**	**Rule 172: access = delivery**
§ 10(a)(3) *(today)* *Updating*	Nine months post-effective: update to current info	Antifraud + *Manor Nursing* duties
§ 4(a)(3) *Exemption*	Dealer exemption from § 5(b)(1)	Not first distribution; after 40/90 days
Rule 174 *Exemption*	Dealers exempt from delivery	0 days (reporting); 25 days (IPO+listed); 40/90 days (other)
Rule 172 *Safe harbor*	**Access equals delivery — no physical delivery**	**Confirmations and transfers only (Rules 172(a), (b))**
Rule 173 *Notice*	Written notice that sale was made under reg. stmt.	Notice only; during § 4(a)(3) / Rule 174 delivery period

5.4. Recap

Traditional free writing (TFW) dominates free writing prospectuses (FWPs) in the Post-Effective Period.

	TFW (§ 2(a)(10)(a))	**FWP (Rule 433)**
Prospectus Delivery	§ 10(a) required	§ 10(a) for non-reporting/ unseasoned
Legend	None	Rule 433(c)(2)
Filing	None	Rule 433(d)
Record Retention	None	Rule 433(g) if not filed
Status	**Excluded** from prospectus (§ 2(a)(10)(a))	§ 10(b) prospectus Potential **§ 12(a)(2) liability**

5.4. Recap

Rule 172 makes access equal delivery; Rules 173 and 15c2-8 still apply.

- **Rule 172(a)–(b):** after the effective date, **written confirmations** and **delivery of securities** satisfy § 5(b) if the Rule 172(c) conditions are met
- **Rule 172(c)(4):** the issuer's failure to file does **not** block dealers under § 4(a)(3)
- **Rule 173:** absent an exclusion under § 4(a)(3) or Rule 174, each **underwriter or dealer** sends a **notice** that the sale was made under a registration statement — independent of Rule 172
- **Rule 15c2-8(b):** for **non-reporting issuers**, the **preliminary prospectus** goes out **48 hours** before the confirmation

5.9. Updating the Prospectus and Reg. Statement

Non-shelf issuers face distinct updating duties for the prospectus versus the registration statement.

	Prospectus Updating	**Registration Statement Updating**
Source	Antifraud: Rule 10b-5, § 12(a)(2) *Manor Nursing* duties § 10(a)(3)	Rule 424(b): "substantive changes from or additions to" § 11 liability measured at effective date
Trigger	Material misstatement/omission Grossly misleading (*Manor Nursing*) Nine months post-effective (§ 10(a)(3))	"Substantive" change ⟶ Rule 424(b) filing "Fundamental" change ⟶ Item 512(a) amendment (shelf only)
Mechanism	Stickering or updated prospectus	Post-effective amendment or Rule 424(b) filing (which amends registration statement)